

be inquired, who were ||culpable either of the act, or of the force, and who were present, either men or women, and of what age soever they be (if they can speak, or have any discretion;)(3) and how many soever be found culpable by inquisition in any of the manners aforesaid, they shall be taken and delivered to the sheriff, and shall be committed to the gaol;(4) and such as be founden, and be not culpable shall be attached until the coming of the justices, and their names shall be written ¶*in rolls*.(5) If it fortune any such man be slain, §*which is found in the fields or in the woods*, first, it is to be inquired, whether he were slain ***in the same place*, or not;(6) and if he were brought and laid there, they shall do so much as they can to follow their steps that brought the body thither, ††*whether he were brought upon a horse, or in a cart*:(7) It shall be inquired also, if the dead person were known, or else a stranger, and where he lay the night before;(11) and immediately upon these things being inquired, the bodies of such persons being dead or slain, shall be buried.

II. In like manner it is to be inquired of them that be drowned, or suddenly dead, and after ††*such bodies are to be seen*, whether they were so drowned or slain, or strangled by the sign of a cord tied streight about their necks, or about any of their members, or upon any other hurt found upon their bodies, whereupon they shall proceed in the form abovesaid;(2) and if they were not slain, then ought the coroner to attach the finders, and all other in the company.(7) Upon appeal of wounds and such like, especially if the wounds be mortal, the parties appealed shall be taken immediately and kept until it be known perfectly, whether he that is hurt shall recover, or not;(8) and if he die, the ¶¶*defendant* shall be kept; and if §§*he* recover health, ||||*they* shall be attached by four or six pledges, after as the wound is great or small.(9) If it be for a maim, he shall find †*no less than* four pledges; if it be for a small wound ††two pledges shall suffice.(10) Also all wounds ought to be viewed, the length, breadth, and deepness, and with what weapons,‡ and in what part of the body the wound or hurt is, and

||Add and in what manner culpable. ¶For in rolls, read in the rolls of the coroners. §Read in the fields or woods and be there found, &c. **Read there. ††Read or of the horse which brought him or cart, if perchance he was brought upon a horse or cart. ††Read it is to be seen of such bodies, &c. Appeals of wounds or maim—Rast. 45. ¶¶For defendant, read offenders. §§Read if the parties hurt. ||Read the offenders. †For no less than, read more than. ††Add without maihem. ‡Add the wound is given.

how many be culpable, *¶* and how many wounds there be, and who gave the wound ;(11) all which things must be enrolled in the roll of the coroners.(15) If any be suspected of the death of any man being in danger of life, he shall be taken and imprisoned, as before is said.(16) In like manner huy shall be levied for all murthers, burglaries, and for men slain or in peril to be slain, as otherwhere is used in *England*, and all shall follow the huy and steps, as near as can be; and he that doth not, and is convict thereupon, shall be attached to be afore the justices of the goal, &c.

* 3 HENRY VII. CAP. 1. A.D. 1486.†

The authority of the court of Star-chamber. Where one inquest shall inquire of the concealment of another. A coroner's duty after a murder committed. A justice of the peace shall certify his recognizances, &c.

(6) ITEM, the king, remembering how murders and slaying of his subjects daily do increase in this land, the occasions whereof be divers; one, That men in towns where such murders hap to fall and be done, will not attach the murderer, where the law of the land is, That if any man be slain in the day, and the felon not taken, the township where the death or murder is done, shall be amerced ;(7) and if any man be wounded in peril of death, the party that so wounded should be arrested, and put in surety, till perfect knowledge be had, whether he so hurt should live or die : (8) and the coroner, upon the view of the body dead, should inquire of him or them that had done that death or murder, of their abettors and consentors, and who was present when the death or murder was done, whether man or woman,(9) and the names of them that were present, and so found, to inrol and certify ;(10) which law, by negligence, is disused, and thereby great boldness is given to slayers and murderers ;(11) and over this it is used, that within the year and a day after any death or murder had or done, the felony should not be determined at the king's suit, for saving of the party's suit, wherein the party is oftentimes slow, and also

‡ Only those parts of this statute are numbers from 6 to 19, both inclusive, and in force, which are distinguished by the by the number 26. *Report of the Judges.*

¶ Read and if there are many wounds, who gave each particular wound— See 28 Ed. 3. c. 6. for election of coroners. 3 H. 7. c. 1. which inflicts penalty on coroners being remiss. And 1 H. 8. c. 7—1 & 2 P. & M. c. 13. §5—25 Geo. 2. c. 29. which contain further regulations respecting coroners.

agreed with, and by the end of the year all is forgotten, which is another occasion of murder. (12) And also he that will sue any appeal, must sue in proper person, which suit is long and costly, that it maketh the party appellant weary to sue. (13) For reformation of the premisses, the king our sovereign lord, by the assent of the lords spiritual and temporal, and the commons, in the said parliament assembled, and by authority of the same, will that every coroner exercise and do his office according to the law, as is afore rehearsed; (14) and that if any man be slain or murdered, and thereof the slayers, murderers, abettors, maintainers and comforters of the same, be indicted, that the same slayers and murderers, and all other accessaries of the same, be arraigned and determined of the same felony and murder, at any time, at the king's suit, within the year after the same felony and murder done, and not tarry the year and day, for any appeal to be taken for the same felony or murder; (15) and if it happen any person named as principal or accessory, to be acquitted of any such murder at the king's suit, within the year and day, that then the same justices afore whom he is acquitted, shall not suffer him to go at large, but either to remit him again to the prison, or else to let him to bail, after their discretion, till that year and day be passed; (16) and if it fortune the same felons or murderers, and accessaries so arraigned, or any of them, to be acquit, or the principal of the said felony, or any of them, to be attainted, the wife, or next heir to him so slain, as shall require, may take and have their appeal of the same death and murder within the year and day after the same felony and murder done, against the said persons so arraigned and acquit, and all other their accessaries, or against the accessaries of the said principal, or any of them so attainted, or against the said principals so attainted, if they be on live, and the benefit of his clergy thereof before not had; (17) and that the appellant have such and like advantage, as if the said acquittal or attainder had not been, the said acquittal or attainder notwithstanding; (18) and over that the wife, or heir of the said person so slain or murdered, as the case shall require, may commence their appeal in proper person, at any time within the year after the said felony done, before the sheriff and coroners of the county where the said felony or murder was done, or before the king in his bench, or justices of goal-delivery;—(26) And also it is ordain-